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CASE NAME: Johnnie Cornejo v. In-N-Out Burgers, et al.

1. Defendant In-N-Out Burgers' Motion to Compel Plaintiff Johnnie Cornejo's Responses to Request for Production of Documents, Set One and Request for Sanctions;

2. Defendant In-N-Out Burgers' Motion to Compel Plaintiff Johnnie Cornejo's Responses to Special Interrogatories, Set One and Request for Sanctions; and

3. Defendant In-N-Out Burgers' Motion to Compel Plaintiff Johnnie Cornejo's Responses to Form Interrogatories, Set One and Request for Sanctions

TENTATIVE RULING

The Court GRANTS Defendant In-N-Out Burgers' Motion to Compel Plaintiff Johnnie Cornejo's Responses to Request for Production of Documents, Set One, Special Interrogatories, Set One, and Form Interrogatories, Set One. Plaintiff must provide complete, verified, code-compliant responses without objection, including any applicable responsive documents, to Defendant's Request for Production of Documents, Set One, Special Interrogatories, Set One, and Form Interrogatories, Set One, to Defendant's counsel within 20 calendar days of the Court's order.

The Court DENIES Defendant's requests for monetary sanctions.

Defendant In-N-Out Burgers is ordered to give notice of the Court's ruling within five calendar days of this order.

BACKGROUND

This is a premises liability action. On March 11, 2025, plaintiff Johnnie Cornejo (Plaintiff) filed this action against defendants In-N-Out Burgers (Defendant or In-N-Out), Doe Employee, and Does 1-100, alleging causes of action for negligence and premises liability.

On July 27, 2026, Defendant In-N-Out moved to compel responses from Plaintiff to various written discovery requests. Plaintiff did not oppose the motions.

LEGAL STANDARD

Interrogatories

When a party fails to serve a timely response to interrogatories, the party propounding the interrogatories may move for an order compelling a response. (Code Civ. Proc., § 2030.290, subd. (b).) A party who fails to provide timely responses waives any objections, including ones based on privilege or work product. (Id., § 2030.290, subd. (a).) “The court shall impose a monetary sanction... against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel a response to interrogatories, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” (Id., § 2030.290, subd. (c).)

Requests for Production of Documents

When a party fails to serve a timely response to an inspection demand, the party making the demand may move for an order compelling a response to the inspection demand. (Code Civ. Proc., § 2031.300, subd. (b).) A party who fails to provide timely responses waives any objections, including ones based on privilege or work product. (Code Civ. Proc., § 2031.300, subd. (a).) “[T]he court shall impose a monetary sanction... against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel a response to a demand for inspection, copying, testing, or sampling, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” (Id., § 2031.300, subd. (c).)

DISCUSSION

Meet and Confer

Although meeting and conferring is not required before bringing motions to compel, this Court does require parties to meet and confer in person, by telephone, or by videoconference before bringing any motion. (Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants (2007) 148 Cal.App.4th 390, 404; Dept. 6 Courtroom Information, p. 2 of pdf.) The Court finds Defendant’s efforts to meet and confer before bringing these motions sufficient. (Kwon Decls., ¶¶ 4, 7-11, Ex. D.)

Analysis

Defendant seeks to compel initial responses to Request for Production of Documents, Set One, Special Interrogatories, Set One, and Form Interrogatories, Set One, served on September 15, 2025. Defendant indicates Plaintiff has not provided any responses to date. (Kwon Decls., ¶¶ 4, 7-11, Exs. A.) The Court finds Defendant’s motions well taken and hereby GRANTS them. Plaintiff must provide complete, verified, code-compliant responses without objection, including any applicable responsive documents, to Defendant’s Request for Production of Documents, Set One, Special Interrogatories, Set One, and Form Interrogatories, Set One, to Defendant’s counsel within 20 calendar days of the Court’s order.

The Court DENIES Defendant’s requests for monetary sanctions because all the notices for Defendant’s motions fail to comply with Code of Civil Procedure section 2023.040, which specifies that, “[a] request for a sanction shall, in the notice of motion, identify every person, party, and attorney against whom the sanction is sought, and specify the type of sanction sought.” (Code Civ. Proc., § 2023.040, *italics added*.)

CONCLUSION

The Court GRANTS Defendant In-N-Out Burgers' Motion to Compel Plaintiff Johnnie Cornejo's Responses to Request for Production of Documents, Set One, Special Interrogatories, Set One, and Form Interrogatories, Set One. Plaintiff must provide complete, verified, code-compliant responses without objection, including any applicable responsive documents, to Defendant's Request for Production of Documents, Set One, Special Interrogatories, Set One, and Form Interrogatories, Set One, to Defendant's counsel within 20 calendar days of the Court's order.

The Court DENIES Defendant's requests for monetary sanctions.

Defendant In-N-Out Burgers is ordered to give notice of the Court's ruling within five calendar days of this order.